

County Commissioners Meeting November 6th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=rMFLFdPVC1s
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Delaware County Commissioners Meeting Summary

Meeting Date: Monday, November 6, 2023

Start Time: 9:02 AM

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Monday, November 6, 2023, at 9:02 AM.
- **Attendance:**
 - **Present:** Mr. Henry, Mr. King, Mr. Rigan (Board Members / Commissioners)
 - **Presiding Officer:** Not explicitly titled by name in opening roll call, but led by the commissioners.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:**
 - Approved the minutes of the October 30, 2023 commissioner meeting (Approved by Voice Vote following roll call check).

4. Substantive Business & Board Action

- **00:06:44 IU Health Master Service Agreement**
 - **Sponsor / Presenter:** Board Commissioners / Staff.
 - **Deliberation Summary:** The board discussed removing the agreement from the table and reviewing the updated terms. Commissioners noted that the clinic location is moving to the former Ross building in the Imaging Center on River Road, effective December 10th. The clinic will operate from 6:00 AM to 6:00 PM for employees, and act as emergency care from 6:00 PM to 8:00 PM on weekdays, as well as on Saturdays and Sundays.
 - **Action & Vote Disposition:** Removed from table and approved as presented by roll call vote (Passed Unanimously).
- **00:08:44 Highway Department Truck Lease Agreement Paperwork**
 - **Sponsor / Presenter:** Tommy Humber / Highway Department.
 - **Deliberation Summary:** The board previously approved the concept on October 2nd for leasing three-ton trucks (deliveries/payments starting in June). Carrie (staff) brought the written paperwork for final administrative approval and signatures.
 - **Action & Vote Disposition:** Approved by Voice Vote / Roll Call (Passed Unanimously).
- **00:10:14 Resolution 2023-24 & Resolution 2023-25: Park One Bond & Plan Commission Order**
 - **Sponsor / Presenter:** Brad Bookout, representing the Delaware County Redevelopment Commission (DCRC).
 - **Deliberation Summary:** Brad Bookout presented two resolutions regarding the issuance of a bond for Park one and approving the plan commission order relating to the bond. The bond funds a second entrance into Park One, connecting in front of Dana Corporation across from All Steel Carports (North Ed Steel), featuring a new traffic light to alleviate dangerous left-turn congestion at 5:00 PM. The project has support letters from Merix, SM Ready Mixed Concrete, Muny Power Products, Save A Lot Foods, Mike Lunsford, All Steel Carports, and Dana Corporation, and has been approved by the Yorktown Town Board and DCRC. The goal is to go to bid in the spring and begin construction next summer.
 - **Action & Vote Disposition:** Resolutions 2023-24 and 2023-25 approved together by roll call vote (Passed Unanimously).
- **00:30:10 Highway Department Scrap Material Disposal Request**
 - **Sponsor / Presenter:** Tommy Humber, Delaware County Highway.
 - **Deliberation Summary:** Request for permission to send old, stripped equipment and vehicles to the scrapyard, including a 1991 Gradeall (parts already harvested for other machines), two 1990 GMC single-axle TopKick dump trucks purchased new in 1990 (stripped of usable parts), and a couple of hot box tops with no serial numbers or titles.

- **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:33:00 IRAX Program Funding & Lease Renewal Request**
 - **Sponsor / Presenter:** Shane Aart, Program Director for Delaware County IRAX Program.
 - **Deliberation Summary:** Shane Aart provided programmatic updates: since July 2022, IRAX supported 1,879 incarcerated individuals, provided 14,880 one-on-one/group engagements, assisted 206 individuals released to treatment, and made 262 community referrals. Successful 30-day post-release program retention increased from 21% (first 6 months) to 53% (subsequent 6 months). Requested renewal of office space lease and renewal of \$50,000 funding support. Commissioners agreed to renew the office space lease immediately, but deferred the \$50,000 funding commitment until after the start of the new year.
 - **Action & Vote Disposition:** Lease renewal approved by roll call vote (Passed Unanimously); funding request deferred to the new year.
- **[00:08:05 & 03:05:00] Payment of Claims**
 - **Sponsor / Presenter:** County administration.
 - **Deliberation Summary:** Review and authorization of standard claims.
 - **Action & Vote Disposition:**
 - Regular Claims (\$1,753,792.83) <U+2014> Approved by roll call vote (Passed Unanimously).
 - AR Claims (\$23,637.00) <U+2014> Approved by roll call vote (Passed Unanimously).

5. Open Public Comment / Citizen Forum

- **00:38:26 Board Procedural Clarification on Solar Ordinance**
 - **Speaker:** John (County Attorney / Staff)
 - **Summary:** Explained the procedural status of the zoning amendment regarding the solar ordinance following the Plan Commission's public hearing last Thursday. The first reading/hearing occurs at the Plan Commission level. The second step comes to the Commissioners to adopt, modify, or send back with suggested changes (note: this second reading is *not* a public hearing). The board is currently waiting for the official certified document and order from the Planning Commission.
- **00:40:02 Rick Yenser**
 - **Summary:** Spoke regarding clean energy, solar ordinances, and taxpayers' financial burdens. Highlighted a reported \$99 million debt posted on Indiana Gateways for taxpayers over 20 years (primarily tied to the jail facility), questioned the cost and funding source of the Park One road entrance project, and cautioned against build-operate-transfer (BOT) agreements.
- **00:44:45 Kelsey Morris** (Resident of Albany)

- **Summary:** Shared findings from discussions with the Modok town board president regarding local solar panel projects. Noted local financial and legal challenges in Modok (minimal town benefit, increased taxes, decreased property values, multiple lawsuits, supply chain issues with panels rejected by US Customs), argued that solar projects threaten local agricultural businesses (grain terminals, implement dealers), and urged commissioners to reconsider provisions like the Good Neighbor policy and acreage caps (raising concerns over moving from 2% to 20%).
- **00:46:42 Jason Mock**
 - **Summary:** Spoke as a farmer and agricultural advocate (noting global agricultural following and USDA speaking background). Discussed the long-term ecological, water-infiltration, and food-security impacts of converting productive agricultural land to industrial solar installations, warning of negative multiplier effects on local ag-support businesses.
- **00:50:13 Cody Light** (Resident of Gaston)
 - **Summary:** First-generation farmer citing Delaware County's 2017 comprehensive plan goals to preserve rural character and protect agricultural resources. Presented statistics on agricultural economic impact in Delaware County (~14,000 jobs, \$656 million in wages, multi-million dollar crop yields), arguing that industrial solar acreage proposals threaten a critical economic engine.
- **00:53:44 Kathy Kirtley** (Resident of Gaston)
 - **Summary:** Criticized the Planning Commission's recent actions regarding the solar study committee's 10-month recommendations and the removal of the Good Neighbor policy. Warned of potential widespread property value losses, eminent domain risks via utility provider status, and potential federal Fifth Amendment legal liabilities for the county. Urged the board to pass a community-scale-only solar ordinance.
- **00:57:23 Brandon Petro** (Resident of Gaston)
 - **Summary:** Addressed the removal of the property value guarantee (PVG) from the solar ordinance recommendations. Drawing on his real estate background, he cited appraisal studies showing large-scale solar operations cause 6% to 28% losses in surrounding home values (average 16%), especially when properties are engulfed on multiple sides. Urged the board to follow models like Pulaski County and implement a robust PVG ordinance.

6. Administrative Updates & Adjournment

- **Staff & Departmental Updates:**
 - **00:12:43 Jeff Answer (Chief Probation Officer):** Provided updates on criminal justice matters, thanking commissioners for funding the September "Credible Messenger" training program (facilitated by the Academy for Transformational

Change, training 25+ community mentors and stakeholders in social capital building). Highlighted the local Justice Reinvestment Advisory Council (JRAC) system mapping and technical assistance efforts.

- **00:21:16 Neil King & Stefan (Community Representatives):** Spoke regarding the next steps for the Credible Messenger community cohort training, seeking continued support and micro-stipends to engage at-risk youth and break cycles of poverty and crime.
- **00:31:56 Steve Foster (Building Superintendent):** Provided an update on the Justice Center roof replacement, noting that all old shingles were stripped last week and full-force reinstallation is underway, with completion expected by the end of the week. Cleanup and yard rolling will be handled upon completion.
- **Adjournment:**
 - **01:04:10** A motion to recess was made and seconded.
 - **Vote Disposition:** Approved via roll call (Mr. King: Yes; Mr. Rigan: No; Mr. Henry: Yes). The meeting was officially recessed.

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